



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Copy of PERSONNEL FILES
Code	po8320
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8320 - PERSONNEL FILES

It is necessary for the orderly operation of the School District to prepare a personal information system for the retention of appropriate files bearing upon an employee's duties and responsibilities to the District and the District's responsibilities to the employee.

The Board of Education requires that accurate, necessary and relevant records exist concerning an employee's qualifications for the job held, compliance with Federal, State, and local benefit programs, conformance with District rules, and job performance, including, but not limited to completed evaluations of the employee. Such records will be kept in compliance with the laws of the State of Ohio.

The Board delegates the maintenance of an employee personal information system to the Director of Human Resources.

A single central file shall be maintained, and subsidiary records shall be maintained for ease in data gathering only.

Employees asked to supply information for a personnel file shall be informed whether the requested information is legally required. If it is not, ~~the employee-s/he~~ may decline to supply the information.

Only that information which pertains to the professional role of the employee may be placed in an employee's official record file by duly authorized Board personnel.

A. ~~A copy of each such entry shall be given to the employee upon request. A copying cost will be charged for each copy given to the employee at his/her request at the rate determined by the Business Services office.~~

B. The employee shall have access to ~~their his/her~~ file ~~upon request~~ through the employee records portal.

Personnel records are predominantly public records and to that extent must be made available for inspection and copying in accordance with State and Federal laws pertaining to same. In accordance with the Federal Privacy Act and case law, the Board shall refrain from disclosing an employee's social security number when releasing personnel records. Further, if an employee presents to the District a valid confidentiality program authorization issued by the Secretary of State certifying that the employee ~~information to the District certifying that s/he~~ is a participant in the Safe at Home/Address Confidentiality Program ~~administered by the Secretary of State~~, the Board shall refrain from including the employee's actual/confidential residential address in any personnel records, personnel files, or staff directories (including electronic records and files) or disclosing the employee's actual/confidential residential address when releasing personnel records. The Board shall only list the address designated by the Secretary of State to serve as the employee's address in any personnel records, personnel files, or staff directories. Further, the Board shall use the employee's designated address for any and all communications and correspondence between the Board and the

employee. The employee's actual/confidential residential address shall be maintained in a separate confidential file that is not accessible to the public or any employees without a legitimate purpose. Additionally, if applicable, the employee's school, institution of higher education, business, or other place of employment (as specified on an application to be a program participant or on a notice of change of name or address) shall be maintained in a confidential manner. The intentional disclosure of an employee's actual/confidential residential address is prohibited. Any violations could result in disciplinary action or criminal prosecution.

Personnel records shall be monitored regularly to assure compliance with this policy and the law. Records deemed no longer accurate, relevant or necessary under this policy may be submitted to the District Records Commission for disposal in accordance with law.

Revised 5/19/08

Revised 6/26/17

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Legal

R.C. 149.41, 149.43, 1347 et seq.

Federal Privacy Act, 5 U.S.C. Section 552a note

State ex rel. Beacon Journal Publishing Company v. City of Akron (1994)

70 Ohio St. 3d, 640 N.E. 2d 164